IN THE HIGH COURT OF GUJARAT AT AHMEDABAD

R/CRIMINAL MISC.APPLICATION (FOR REGULAR BAIL - BEFORE CHARGESHEET) NO. 23092 of 2026

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DALSUKH @DALABHAI PALABHAI @BABABHAI BAROT & ORS.

Versus

STATE OF GUJARAT

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Appearance:
MR MOHDDANISH M BAREJIA(10612) for the applicants(s) No. 1,2,3
MR DARSHAN M VARANDANI(7357) for the Respondent(s) No. 1
MR YUVRAJ BRAHMBHATT, APP for the Respondent(s) No. 1

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CORAM:**HONOURABLE MR. JUSTICE HASMUKH D. SUTHAR**

Date : 22/10/2026

ORDER

[1.0] **RULE.** Learned APP waives service of rule for the respondent-State.

[2.0] The present application is filed under Section 483 of the Bharatiya Nagarik Suraksha Sanhita, 2023 (for short "BNSS") for regular bail in connection with FIR being **C.R. No.11993004260793 of 2026** registered with **Bhachau Police Station, Kachchh East-Gandhidham** for the offences punishable under Sections 109(1), 115(2), 117(2), 351(3), 3(5), 189(2), 189(4), 190, 191(1), 191(2), 191(3), 324, 125(a) and 125(b) of the Bharatiya Nyaya Sanhita, 2023 (for short "BNS") and section 135 of the Gujarat Police Act.

[3.0] Learned advocate appearing on behalf of the applicants submits that applicants are innocent and have been falsely implicated in the offence and now nothing is required to be recovered or discovered. He therefore submits that, considering the nature of the offence, the applicants may be enlarged on regular bail by imposing suitable conditions.

[4.0] Learned APP appearing on behalf of the respondent-State has opposed the present application and requested to dismiss the present application for regular bail looking to the nature and gravity of the offence.

[4.1] Learned advocate for the original complainant has tendered affidavit of the original complainant objecting to the present application, which is taken on record. He has also vehemently opposed the present application adopting the submissions made by the learned APP and requested to dismiss the present application.

[5.0] While granting bail, the Court has to consider the involvement of the accused in the alleged offence, the jurisdiction to grant bail has to be exercised on the basis of the well settled principles having regard to the facts and circumstances of each case and the following factors are to be taken into consideration while considering an application for bail: (i) the nature of accusation and the severity of the punishment and the nature of the materials relied upon by the prosecution; (ii) reasonable apprehension of tampering with the witnesses and threat to the complainant or the witnesses; (iii) reasonable possibility of securing the presence of the accused at the time of trial or the likelihood of his abscondence; (iv) character behaviour and standing of the accused and the circumstances which are peculiar to the accused; (v) larger interest of the public or the State and similar other considerations are required to be considered.

[6.0] I have heard the learned advocates appearing on behalf of the respective parties and perused the investigation papers. Following aspects have been considered:

(1) In present case, cross-complaints have been filed and it is alleged that the present applicants pelted stone due to which the injury was caused to the victim however, now the injured victim is out of danger and discharged from the hospital and substantial part of investigation is over;

(2) Applicants are behind the bars since **24.08.2026**;

(3) There is nothing to be recovered or discovered from the applicants;

(4) The applicant No.1 is having one past antecedent however, is governed by presumption of innocence unless proven guilty and applicant Nos.2

and 3 are not having any past antecedent**;**

(5) Obviously commencement and conclusion of trial will take some time;

(6) Co-accused similarly situated are enlarged on regular bail and therefore, on the ground of parity also ***(Rameshbhai Batubhai Dhabi Vs. State of Gujarat reported in 2011 (3) GLR 1999)***, present application deserves consideration.

[7.0] This Court has also taken into consideration the law laid down by the Hon'ble Apex Court in the case of **Sanjay Chandra vs. Central Bureau of Investigation** reported in **[2012]1 SCC 40** as well as in the case of **Gudikanti Narasimhulu And Ors vs. Public Prosecutor, High Court of Andhra Pradesh** reported in **(1978)1 SCC 240.** Obviously, the conclusion of trial will take time and keeping the accused behind the bars is nothing but amounts to pre-trial conviction and therefore, considering the celebrated principle of bail jurisprudence is that *"bail is a rule and jail is exception"* as well as the concept of personal liberty guaranteed under Article 21 of the Constitution of India, present application deserves consideration.

[8.0] In the facts and circumstances of the case and considering the nature of the allegations made against the applicants in the FIR, without discussing the evidence in detail, *prima facie*, this Court is of the opinion that this is a fit case to exercise the discretion and enlarge the applicants on regular bail. Hence, the present application is allowed. The applicants are ordered to be released on regular bail in connection with FIR being **C.R. No.11993004260793 of 2026** registered with **Bhachau Police Station, Kachchh East-Gandhidham** on executing a personal bond of Rs.25,000/- (Rupees Twenty-five Thousand only) each with **ONE SURETY** of the like amount to the satisfaction of the trial Court and subject to the conditions that they shall;

(a) not take undue advantage of liberty or misuse liberty;

(b) not act in a manner injurious to the interest of the prosecution & shall not obstruct or hamper the police investigation and shall not to play mischief with the evidence collected or yet to be collected by the police;

(c) surrender passport, if any, to the Trial Court within a week;

(d) not leave the **territory of State of Gujarat** without prior permission of the Trial Court concerned;

(e) **mark presence before the concerned Police Station once in a week till filing of the chargesheet and after filing of the chargesheet, mark presence before the concerned police station once in a month for a period of six months;**

(f) furnish the ***copy of Aadhaar card, email ID/contact number / permanent and present address of their residence*** to the Investigating Officer and also to the Court at the time of execution of the bond and shall not change the ***residence and contact number/SIM card*** without prior permission of Trial Court;

(g) not to indulge in any illegal activity failing which learned trial Court shall issue warrant and cancel the bail of the applicants.

(h) **not to enter the jurisdiction of Taluka Bhachau till the completion of trial except for marking presence before the concerned police station and/or for attending the court proceedings.**

[9.0] The authorities will release the applicants only if they are not required in connection with any other offence for the time being. If breach of any of the above conditions is committed, the Sessions Judge concerned will be free to issue warrant or take appropriate action in the matter.

[10.0] Bail bond to be executed before the lower Court having jurisdiction to try the case. It will be open for the concerned Court to delete, modify and/or relax any of the above conditions, in accordance with law.

[11.0] At the trial, the trial Court shall not be influenced by the observations of preliminary nature qua the evidence at this stage made by this Court while enlarging the applicants on bail.

[12.0] Rule is made absolute to the aforesaid extent. Direct service is permitted.

(HASMUKH D. SUTHAR, J.)

Ajay

Original copy of this order has been signed by the Hon'ble Judge.
Digitally signed by: AJAY CHANDRAN MENON(HC00939), PRINCIPAL PRIVATE SECRETARY, at High Court of Gujarat on 22/10/2026 14:53:06